

KEYSTONE CANINE TRAINING CLUB

CONSTITUTION AND BYLAWS

Revision 2-19-10

ARTICLE I. NAME. The legal name of the club is the "Keystone Canine Club, Inc." The commonly used name of the club is the "Keystone Canine Training Club (KCTC)," referred to in this document as "the club."

ARTICLE II. OBJECTIVES.

- A. To do all in its power to maintain, encourage and promote the training of all dogs.
- B. To encourage, support and promote sportsmanlike competition at dog events, such as matches or trials.
- C. To provide information to the public on training and showing and when possible to offer such shows to the public.

ARTICLE III. CLUB PROFITS. The club shall not be conducted or operated for profit and no part of any profits or remainder or residue from dues or donations to the club shall benefit any member or individual.

ARTICLE IV. DOG FIGHTING. No individual or group of individuals known to: promote, support, raise dogs for fighting; knowingly sell, give or trade dogs that will be used for fighting; condone or be associated with the facing off, game testing, rolling or pitting; will be tolerated or allowed membership in this club.

ARTICLE V. MEMBERSHIP.

SECTION 1. ELIGIBILITY. Membership shall consist of an individual or family and shall be open to all over the age of eighteen who own and work a dog or actively participate in club events. Applicants who have completed two classes through KCTC may apply for membership. Membership is not restricted to the applicant's place of residence, race, color, religion, nationality, gender, sexual orientation, or breed of dog. No member may transfer membership to any other person.

SECTION 2. TYPES OF MEMBERSHIP.

Section 2.1. Individual membership. Open to individuals 18 years of age or older. Each individual member shall be entitled to one vote at any club meeting at which he or she is present.

Section 2.2. Family membership. Open to any people in a household sixteen years of age or older. Each family shall be entitled to two votes if two or more family members are present.

Section 2.3. Junior Membership. Open to individuals 13 - 17 years old. Junior members shall be sponsored by an adult member, and the adult sponsor shall be identified on the membership application form. If the sponsor is not the parent, the parent shall consent to the sponsor, also on the membership application form. The Junior Membership fee shall be one-half of the Individual and Family Membership fee.

Section 2.4. Membership responsibility. All members are expected to volunteer for at least one club event each year.

SECTION 3. DUES.

Section 3.1. Amount. Membership dues shall be in an amount per year as determined by the Board of Directors.

Section 3.2. Payment of dues for applicants. The term of membership is one year. Dues for applicants for membership shall be included with the membership application. The next year's dues shall be prorated.

Section 3.3. Dues statement for members. During the month of June of each year, the Corresponding Secretary shall send to each member a statement of dues for the ensuing year. Dues shall be paid by the end of August.

Section 3.4. Non-payment of dues. Membership dues shall be paid by the due date. No member may vote whose dues are not current. If dues are not paid by the due date, membership will be considered lapsed and the non-member rate will apply for all classes.

SECTION 4. APPLICATION FOR MEMBERSHIP.

Section 4.1. Submitting the application. Each applicant shall apply on a form approved by the Board of Directors. The form shall provide that the applicants abide by the Policies and Procedures and Constitution and Bylaws of the KCTC. The application form shall be endorsed by two members of club in good standing. The applicant shall submit the completed application along with a payment of annual dues to the Corresponding Secretary.

Section 4.2. Publication of applicants' names in the newsletter. The applicants' names shall be published in the next newsletter. Any member who has objections to the applicant has 30 days to forward objections to

the Corresponding Secretary, who shall advise the Board of Directors of any objections.

SECTION 5. ELECTION TO MEMBERSHIP. At the next membership meeting after the membership application is announced in the newsletter, the membership shall vote on the candidate's application. The Corresponding Secretary shall inform the applicant of the date of the meeting. Approval for membership shall require a two-thirds (2/3) affirmative majority of the members present. Candidates for membership shall be notified by mail, e-mail, or telephone of election results if they are not present at the meeting. Applicants are encouraged to attend the meeting during which they are voted upon.

SECTION 6. REJECTED APPLICATIONS. Rejected applicants may resubmit their application after six months. Any resubmitted application will be processed as an original application.

SECTION 7. TERMINATION OF MEMBERSHIP.

Section 7.1. Resignation. Any member who wishes to do so may resign in writing or by e-mail to the Corresponding Secretary. No member shall receive a refund of dues when resigning.

Section 7.2. Lapsing. A membership will be considered as lapsed and be terminated if the member's dues remain unpaid after the due date. The Board of Directors may grant a grace period of an additional 30 days for payment to any member who applies for an extension for extenuating circumstances. In no case may a person be entitled to vote at any club meeting whose dues are unpaid as of the date of the meeting.

Section 7.3. Expulsion. A membership may be terminated by expulsion as provided by Article XII.

Section 7.4. Reinstatement of expelled members. Any person whose club membership has been terminated may reapply after a period of one year.

ARTICLE VI. FISCAL YEAR. The club's fiscal year shall begin on the first day of July and end on the last day of June.

ARTICLE VII. MEETINGS.

SECTION 1. REGULAR MEMBERSHIP MEETINGS. Regular meetings of members shall be held within the Commonwealth of Pennsylvania in Allegheny or Washington County as determined by the Board of Directors. A

notice of the location, time and date of the meetings shall be published in the club newsletter.

SECTION 2. SPECIAL MEMBERSHIP MEETINGS. Special membership meetings may be called by the President or by a majority of the Board at any regular or special Board meeting, or shall be called by the Corresponding Secretary upon receipt of a petition signed by 10 percent of the members of the club who are in good standing. Such special meetings shall be held in the same geographical area as for regular meetings, at a time, place and date designated by the President. Written notice of such meeting shall be mailed by the Corresponding Secretary at least five (5) days and not more than ten (10) days prior to such special membership meeting and shall state the purpose of the meeting. No other club business may be transacted during special membership meetings. A quorum for such a meeting shall be two-thirds (2/3) of the members present.

SECTION 3. BOARD MEETINGS. Board of Directors meetings shall be held in the Commonwealth of Pennsylvania in Allegheny or Washington County monthly at a location, time, and place to be determined by the Board. A notice of such meetings shall be published in the club newsletter. The quorum for such a meeting shall be a majority of the Board.

SECTION 4. SPECIAL BOARD MEETINGS. Special meetings of the Board may be called by the President or Corresponding Secretary. Such meetings shall be held in the Commonwealth of Pennsylvania in either Allegheny or Washington County at a time, date and place designated by the person authorized to call such a meeting. Notice shall be provided by the Corresponding Secretary at least five (5) days and not more than ten (10) days prior to the meeting.

SECTION 5. VOTING. Each Club member in good standing whose dues are paid for the current year, and who is entitled to vote shall be entitled to vote at any meeting at which the member is present. Proxy voting shall not be permitted. Voting for Officers and Board members and election of new members shall be by secret ballot. All other voting shall be by a show of hands. Unless otherwise specified herein, a simple majority of the voting members present at a meeting is required to pass any motion.

ARTICLE VIII. DIRECTORS AND OFFICERS.

SECTION 1. BOARD OF DIRECTORS. The Board shall be comprised of the President, Vice-president, Recording secretary, Corresponding secretary/Membership secretary, Treasurer, Training director, Office manager, and one (1) director-at-large. In addition, the immediate past President shall serve as a voting member of the Board. In the absence of an

immediate past President, one additional director-at-large shall be elected to the Board.

SECTION 2. TERM OF OFFICE. The Officers and Board members shall serve for two-year terms or until their successors are elected. The President, Recording Secretary, Treasurer, and the Office Manager shall be elected in odd-numbered years. The Vice-President, Corresponding Secretary/Membership Chair, Training Director, and the elected Director-at-Large shall be elected in even-number years. No person may hold more than one office per term. An officer or Board member missing three (3) consecutive Board meetings without good cause may be asked by the Board in writing by certified mail with return receipt to resign his/her position. If said officer or Board member has not responded within ten (10) days of receipt of this notice, his/her position shall be terminated. The Board shall vote upon extenuating circumstances for missed meetings.

SECTION 3. OFFICERS. The duties of the Officers are as follows:

Section 3.1. President. The President shall preside at all meetings of the Club and the Board and shall have any other duties specified by the KCTC Constitution and Bylaws. The President shall also distribute keys to the building, and shall maintain a list of people with keys. Keys are to be held by Board members, Instructors, Assistants, and cleaning personnel only. Keys shall not be lent out unless approved by the Training director or the President. Keys shall not be copied. If a key is damaged or lost, the President must authorize a new one.

Section 3.2. Vice-president. The Vice-president shall have the duties and exercise the power of the President in case of the President's absence or incapacity, etc.

Section 3.3 Training director. The Training director shall direct the scheduling of all classes, shall direct curriculum, and shall be available to counsel instructors. The Training director (or his/her delegated representative) shall also revise the club's Policies and Procedures, as needed, and submit such revisions to the Board for approval by majority vote.

Section 3.4. Treasurer. The Treasurer shall receive and record all receipts and monies due or belonging to the club. He/she shall deposit the same in a bank satisfactory to the Board and in the name of the club. His/her books shall be open to the inspection of the Board and, at the discretion of the Board, open for any audit. He/she shall report to the Board at every meeting the condition of the club's finances and a report of all monies received and expended during the previous month and current balance. All checks, notes, vouchers, drafts, acceptances and other

orders for the payment of monies by the club shall be signed by the Treasurer or other Board member(s) as approved by the club's bank.

Section 3.5. Corresponding secretary/Membership chairperson. The Corresponding secretary /Membership chairperson's duties are to prepare and mail (using electronic correspondence when appropriate) all club materials (including notification of the time and place of special membership and special Board meetings), to lend as much assistance as possible to committee chairpersons with mailings that pertain to the club's business, to maintain all correspondence of the club, and to maintain the club's membership list.

Section 3.6. Recording secretary. The Recording secretary's duties are to record the minutes and transactions of the Board and Membership meetings, to furnish a copy of the meeting minutes to the newsletter editor, and to furnish the Board with a copy of the minutes prior to the next meeting.

Section 3.7. Office Manager. The Office manager shall, coordinate with website/call back persons, respond to e-mails to the website "Contact Us" link, maintain class applications and rosters, maintain building supplies (beverages, paper products, cleaning supplies, etc.), maintain the monthly schedule display at the building, deliver all needed information to the Treasurer (payments, bills, receipts, etc.), coordinate with the cleaning person, and coordinate with the training director (discuss any issues with classes).

Section 3.8. Other Board members. Other Board members may be assigned to special tasks (such as webmaster, community outreach, public relations, etc.) on an as-needed basis.

SECTION 4. POWERS OF DIRECTORS. The Board of directors shall have general management and control of the business and affairs of the club and shall exercise all powers that may be performed or exercised by the club.

SECTION 5. VACANCIES. Vacancies on the Board of directors caused by resignation, illness, etc. shall be filled by a member voted upon by a majority vote of the remaining directors. Each director so elected shall serve in full capacity until his successor shall be elected by the membership at the next election meeting for that position.

SECTION 6. RESIGNATIONS. Any director may resign by giving written notification (letter or e-mail) to the President or Corresponding secretary of the club. The resignation shall take effect either at the date stated in the notification, or at the date of the notification if the notification does not contain a resignation date.

SECTION 7. CODE OF CONDUCT

Section 7.1 Conflicts Of Interest. No Member of the Board or any Officer or committee member shall personally profit or gain, directly or indirectly, because of his or her participation with the KCTC, without full disclosure and approval of the Board. Further, each such person shall disclose to the Board any personal interest that he or she may have in any matter pending before the Board and shall not participate in any decision on such matters. Any such disclosures shall be recorded in the minutes of the meeting. Also, each such person shall not obtain a list of members for personal or private solicitation purposes.

Section 7.2 Confidentiality. Board members, Officers, and committee members may have access to private or confidential information regarding personnel, financial, contractual, or legal matters that are needed for decision making. All such information shall be held in strict confidence and shall not be divulged to any outside party, including KCTC members, without authorization from the KCTC President or committee chair.

SECTION 8. COMPENSATION. The members of the Board shall serve without compensation for time or labor but may be compensated for reasonable and necessary expenses.

ARTICLE IX. ELECTION.

SECTION 1. ANNUAL ELECTION. The annual election of Officers and Directors shall be held during the May membership meeting by secret ballot.

SECTION 2. NOMINATIONS. No person may be a candidate for an Officer or Board position on the Board who has not been nominated.

Section 2.1. Nominating committee. The President shall appoint a three-person nominating committee, with one person as the Chair. The Chair shall be a member of the Board.

Section 2. 2. Candidates.

A. Candidate Eligibility. An individual must be at least 18 years old and a member of the club in good standing for a period of one year as of the May meeting before he or she can be nominated to the Board of directors. A Board member need not be a resident of the Commonwealth of Pennsylvania.

B. Potential Candidates.

1. **January membership meeting.** At the January membership meeting the Board shall announce that anyone interested in serving as an Officer or Board member for the following term should approach the nominating committee to express their interest and discuss the position prior to the February meeting.
2. The nominating committee shall approach any person they feel to be appropriate to determine if the person may be interested.

C. Announcement of Candidates.

1. **Announcement at the March membership meeting.** The nominating committee shall present a slate of Officers and Board members comprised of not more than two (2) candidates per office at the March meeting. The candidate will either accept or decline the nomination.
2. **Announcement in the KCTC newsletter.** The membership shall be notified of accepted nominations for proposed officers and Board members via the KCTC newsletter.

Section 2.3. Additional Nominations. Additional nominations may be made from the floor at the April meeting. The proposed candidate must be in attendance at the meeting and must accept or decline the nomination at the meeting. No person who has declined a nomination by the nominating committee may be nominated from the floor for that position.

- A. If the nominating committee nominates one candidate for each office, and no valid additional nominations are made at the April meeting, the nominating committee's slate of candidates shall be declared elected at the time of the annual membership meeting and no balloting will be required.
- B. If two or more valid nominations are nominated for a position on the Board of Directors, the Corresponding secretary or his or her designated assistant shall prepare for each member in attendance and eligible to vote a ballot listing in alphabetical order all of the nominees for each position. Ballots shall be distributed at the annual election meeting.

SECTION 3. COUNTING THE BALLOTS. The election will occur by secret ballot. The Recording secretary, with the assistance of two members, will count and report the election results to the membership. All ballots shall be given to the Office manager, who shall keep them for two years as part of the Club's official records.

SECTION 4. CHANGE OF OFFICER AND BOARD MEMBERS. Immediately upon conclusion of the election, the new officers and Board members shall assume their elected positions. The retiring officers and Board members shall

turn over everything necessary to the new officers and Board members within two weeks of the election.

ARTICLE X. CONTRACTS AND LOANS.

SECTION 1. CONTRACTS. The Board may authorize any Officer or member to place a contract for a specific item or service in the name of the Club.

SECTION 2. LOANS. The club shall not take out any loans.

ARTICLE XI. COMMITTEES.

SECTION 1. The Board may each year appoint standing committees to help advance the work of the club in such matters as dog shows, field trials, obedience trials, agility trials, trophies, prizes, matches, membership and other areas. Special committees may also be appointed by the Board to assist with a special project.

- A. **CHAIRPERSON:** The committee chairperson shall obtain Board approval of any major purchases beyond items normally necessary (based on past experience) for similar events (such as food, ribbons, Porta-potties, judge expenses, etc.).
- B. **MATCH OR SHOW CHAIRPERSON:** Shall be appointed by the Board. Chairpersons shall select and oversee the committees necessary to complete all tasks required to run the entire match or show.
- C. The Board may terminate committees. The Board may or may not choose successors.

ARTICLE XII. DISCIPLINE

SECTION I. Any member who violates the Constitution and Bylaws or Policies and Procedures of the club in a manner that is detrimental to the club or is against the best interest of the club is subject to suspension or expulsion from the club. A written notice and hearing shall be held for such a member.

- A. **CHARGES AND NOTICE:** Any member may bring charges against any club member for alleged misconduct against the best interest of the club. The alleged charge shall be presented in writing along with \$10.00 deposit. This deposit shall be forfeited if such charges are dismissed following a hearing. The Corresponding secretary shall send a copy of the charges to all members of the Board. These

charges shall be considered at a regular or special Board meeting not fewer than seven (7) days or more than thirty (30) days following the filing of the charges.

The President shall fix the day for such a meeting and the Corresponding secretary shall then notify the Board. The Board shall then discuss the charges and if further action is warranted shall designate a hearing committee of five current members in good standing. The Corresponding secretary shall then provide each committee member with a copy of the charges as well as the date, time and place of the hearing. The defendant must be notified of the hearing and may appear to defend him/herself.

- B. HEARING COMMITTEE: This committee shall consist of five members appointed by the Board. A quorum for this committee shall be three members. After all charges and defenses are heard, the committee may, after a majority vote, suspend all privileges of the defendant from the club for a period not to exceed one year, or vote for expulsion. The hearing committee shall inform the Board of directors of its decision in writing. The defendant shall have the right to appeal the hearing committee's decision before a meeting of the full club membership.
- C. APPEAL: The defendant must notify the President in writing of his/her intent to appeal within 10 days of the hearing committee's ruling. The president shall then set the appeal meeting date, time and place. The president shall notify the Corresponding secretary, who shall then notify the members of the date, time, and location of the appeal hearing and provide the members with a copy of the charges. Such a meeting shall be conducted in a manner similar to the hearing of the hearing committee. Members shall then vote by secret ballot. A two-thirds (2/3) majority of members present and voting shall be necessary for suspension or expulsion.

ARTICLE XIII. CHANGES TO THE CONSTITUTION AND BYLAWS

SECTION 1. PROCEDURE: The KCTC Constitution and Bylaws may be revised, amended or repealed as follows.

- A. Any member in good standing can propose revisions, amendments, or repeal of the KCTC Constitution and Bylaws. Such proposals shall be in the form of verbatim changes to the affected paragraphs (showing additions to and deletions from the version in effect) and shall state the reason for each change. The proposal shall be forwarded to the Corresponding secretary who, in turn, shall mail the proposal (regular mail or e-mail) to each member at least two weeks prior to the meeting at

which a vote will be taken on the proposal. The mailing shall specifically notify the membership that a vote will be taken at the next meeting.

B. The KCTC Constitution and Bylaws may be changed by a two-thirds (2/3) vote of the members present and voting at any regular meeting. Prior to the vote, the Board shall identify to the membership its agreement or disagreement with any specific changes.

C. Every new version shall be identified by month, day, and date.

SECTION 2. RETENTION: The Office manager shall retain the current copy of the Constitution and Bylaws with the club's official records.

ARTICLE XIV. DISSOLUTION

The club may be dissolved at any time by the written consent of not less than two-thirds (2/3) vote of the membership. In the event of the dissolution of the club - whether voluntary or involuntary - the properties and monies of the club shall be given to a charitable dog organization as voted upon by the membership. Property may be sold and the resultant money given to a charitable dog organization.

ARTICLE XV. GENERAL PROVISIONS.

SECTION 1. CLUB PURCHASES: Any club purchases above an amount approved by the Board and published in the Policies and Procedures must be voted upon and approved by a majority of the Board.

SECTION 2. NEWS: Any news that is not presented at the membership meeting, when applicable and when deemed necessary, shall be presented to the membership via the monthly newsletter or by email.

SECTION 3. USE OF CLUB MAILING LIST: Requests for use of the club mailing list require Board approval.

SECTION 4. USE OF KCTC BUILDING FOR EVENTS BY OUTSIDE ORGANIZATIONS

A. Organizations other than KCTC wishing to sponsor events in the KCTC training building shall:

1). Request advance approval by the Board prior to the regular monthly Board meeting. The President may request the proposal in writing.

2). At the discretion of the Board, present a copy of insurance certificate equal to or greater than that held by KCTC.

- B. For such events, the outside organization shall pay a fee determined by the Board.

SECTION 5. PRIVATE TRAINING FOR PROFIT BY MEMBERS

Any member (or non-member) training a dog in KCTC's building for profit or by any profit making arrangement outside the jurisdiction of regular KCTC class instruction at any time, whether in scheduled KCTC class setting or private training situation, shall obtain Board approval and pay a fee determined by the Board.

SECTION 6. DISPLAY OF BUSINESS CARDS IN KCC HEADQUARTERS:

Any person displaying business cards in the KCC building must secure Board approval. Business cards shall be displayed under a disclaimer stating that such display does not imply KCC endorsement.

SECTION 7. LIABILITY WAIVER

Anyone with a dog in the KCTC building (other than for KCTC classes) shall sign a Liability Waiver.

ARTICLE XVI. ORDER OF BUSINESS

SECTION 1. At regular membership meetings of the club, the order of business shall be as follows, as appropriate:

- Call to order
- Minutes of the last meeting
- Report of the President
- Report of the Treasurer
- Report of Board members
- Report of committees
- Election of officers and Board (annual election meeting)
- Unfinished business
- New business
- Adjournment

SECTION 2. At the meetings of the Board, the order of shall be as follows, as appropriate, and any unfinished business or new business should be in accordance with an agenda prepared by the President based on input from Board members at least 48 hours prior to the meeting:

Call to order
Any corrections to the minutes of last meeting
Report of the President
Report of the Treasurer
Report of Board members
Report of committees
Unfinished business
New business
Adjournment

ARTICLE XVII. RULES OF ORDER. The rules contained in the current edition of "Robert's Rules of Order, Newly Revised," shall govern the Club in all cases to which they are applicable and in which they are not inconsistent with these Bylaws and any other special rules of order the Club may adopt.

RECORD OF REVISION – 5/23/05

This revision was authored by Dan Goldberg, and approved by a vote at the membership meeting on May 16, 2005.

The major changes are as follows:

Added requirements for conformance to the United Kennel Club (UKC).

Revised the prerequisites for membership.

Formalized the expectation that each member volunteer for at least one club event per year.

Streamlined the membership application and voting process.

Clarified lapsing, termination, and expulsion procedures.

Clarified voting procedures during membership meetings.

Eliminated the conflict in the number of Board members. The number is eleven.

Revised the apprentice program for new instructors to make it applicable to all disciplines, not just obedience.

Revised the procedure for changing the Constitution and Bylaws.

RECORD OF REVISION – 1/10/06

This revision was authored by Dan Goldberg to incorporate comments from UKC. Individual changes are too numerous to list. Major changes include the following: Re-structured per UKC request to separate the Constitution from the Bylaws, and certain paragraphs were re-ordered.

Paragraphs related to training instructors were relocated to the Policies and Procedures document.

A prohibition on dog fighting was added.

Individual vs. family memberships, and their voting rights, were clarified.

Added a requirement that officers and Board members be at least 18 years old.

Changed vote on new membership re-applications from Board to membership.

Added a provision for 10% of the membership to petition for a Special Membership Meeting.
Assigned responsibility for the Policies and Procedures document to the Training Director, because that document only deals with the conduct of classes and instructors.
Added a job description for the Office Manager.
Required that the President appoint a chair for the Nominating Committee.
Required that if there is more than one nominee for a position, the membership must be given a ballot with each nominee listed.
Required the Office Manager to retain ballots as part of the club records.
Added a new Article on Contracts, Loans, and Checks.
Required UKC approval of the Constitution and ByLaws.
Required an original signed version be retained by the Office Manager.
Deleted the requirement that the Club maintain a Club-approved list of private for-profit trainers.
Relocated provisions for keys, formerly in the Policies and Procedures document, to the Office Manger section of the Bylaws.
Relocated provisions for the Apprenticeship Program to the Policies and Procedures document.
General editorial clean-up.

RECORD OF REVISION 2-19-10

This revision was authored by Dan Goldberg approved by the membership at a meeting on February 19, 2010.

The major changes are as follows:

Deleted all reference to United Kennel Club (UKC)
Combined the Constitution and Bylaws into one document.
Changed the name of the club to its current public name.
Limited voting rights to two votes per family.
Added a Junior Membership category and changed membership age limits.
Changed the membership application process and dues payment process to reflect current practice.
Added a one-year time delay for expelled members to reapply for membership.
Reduced the Board from 11 to nine members.
Staggered the Board terms so that not all Board members are up for election each year.
Added a new Code of Conduct to preclude personal financial gain and to preclude public disclosure of confidential information.
Revised the makeup of the Nominating Committee so that the committee will consist of three members (one of which must be a Board member) rather than the Board acting as the Nominating Committee.

Relocated the amount of threshold for club purchases not approved by the Board to the Policies and Procedures, and relocated the exceptions to the Policies and Procedures.

Required that a liability waiver be signed by those participating in all events at the club except for class enrollments.